

R013006-070526 - Public Records Request

Message History (4)

On 7/17/2026 12:39:31 PM, Nicolas Hernandez wrote:

Dear CDSS Public Records Act Unit,

This message is in response to your "Final Response" dated July 17, 2026, and the associated PDF document, SOC_Form_Links.pdf, made available through the portal.

While I acknowledge that your office has provided a table containing hyperlinks to a sub-segment of translated forms, your response remains critically non-compliant and legally inadequate under California law. I hereby formally object to the closure of this request and demand full compliance with the following statutory requirements:

1. Failure to Search and Disclose Core Requested Records (Gov. Code § 7922.535):

My request explicitly demanded digital copies of four specific forms: EBT 2216, SOC 321, SOC 825, and PUB 13. Your response completely omits any search, determination, or production for EBT 2216 (Electronic Benefit Transfer Documents) and PUB 13 (Your Rights Under California Welfare Programs). They do not appear anywhere in your table. Directing a requestor to a general website search directory to find omitted documents is a flat-out violation of your statutory duty to diligently search and produce all responsive records.

2. Failure to Produce Electronic Records in Native Formats (Gov. Code § 7922.570):

I requested digital copies of the actual fillable PDF records. Your office instead produced a spreadsheet list of web links. Under Gov. Code § 7922.570(a), your agency is required to directly produce the actual electronic files in their native electronic format through the portal when they are held in that format—not redirect the requestor to fetch them individually from external web pages.

3. Systemic Language Access Failures under the Dymally-Alatorre Bilingual Services Act (Gov. Code §§ 7295.2 & 7295.4):

Your document formally documents that the vital, life-safety eligibility forms SOC 321 (IHSS Paramedical Services Consent) and SOC 825 (24-Hour Protective Supervision Plan) are "N/A" (Not Available) for nine (9) of California's non-English threshold languages: Arabic, Hindi, Hmong, Japanese, Laotian, Mien, Punjabi, Thai, and Ukrainian. Under Gov. Code §§ 7295.2 and 7295.4, CDSS is statutorily mandated to translate and provide these forms (explicitly defined as "written materials" in § 7295.4) to threshold language-minority groups. Confirming that your agency has failed to translate paramedical consent and protective supervision plans for these populations is a severe statutory failure and constitutes national origin discrimination under language access guidelines.

DEMAND FOR PRODUCTION:

To cure this non-compliance, CDSS must immediately:

1. Conduct a diligent search and directly produce all responsive, fillable PDF files for EBT 2216 and PUB 13 in all requested translated threshold languages.

2. Directly produce the actual, official, fillable electronic PDF files for all available translations of SOC 321 and SOC 825 as listed in your grid (Armenian, Cambodian, Chinese, Farsi, Korean, Russian, Tagalog, and Vietnamese) as requested, rather than a document redirecting me to external downloads.

3. Provide a formal explanation as to why vital, life-safety eligibility forms (SOC 321 and SOC 825) have not been translated into the threshold languages marked "N/A" in your grid, in direct contravention of Gov. Code §§ 7295.2 and 7295.4.

Please be advised that unexcused delays, incomplete searches, or withholding of public records in their native formats will be treated as a willful violation of the Public Records Act. I reserve all legal rights, including seeking a writ of mandate and statutory attorney fees (Gov. Code § 7923.115).

I look forward to your immediate correction of this matter and the direct production of the requested files.

Sincerely,

Nicolas Hernandez

On 7/14/2026 11:54:03 AM, CDSS wrote:

Subject: [Records Center] California Public Records Act (PRA) Request :: R013006-070526

Body:

July 14, 2026

Sent Via Email To: [REDACTED]

Nicolas Hernandez
[REDACTED]
[REDACTED] CA 9 [REDACTED]

SUBJECT: Final Response

California Public Records Act (PRA) Request received on July 05, 2026
CDSS Reference No.: R013006-070526

Dear Nicolas Hernandez,

This letter is in response to the California Public Records Act (PRA) Request received by the California Department of Social Services (CDSS) on July 05, 2026, seeking the following documents:

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.) and the Dymally-Alatorre Bilingual Services Act (Gov. Code § 7290 et seq.), I hereby request digital copies of all public records consisting of the official, fillable PDF variants

translated into all 17 non-English and non-Spanish state threshold languages (Arabic, Armenian, Cambodian, Chinese, Farsi, Hindi, Hmong, Japanese, Korean, Laotian, Mien, Punjabi, Russian, Tagalog, Thai, Ukrainian, and Vietnamese) for the following specific CDSS forms:

EBT 2216 (Electronic Benefit Transfer Documents)

SOC 321 (Request for Order and Consent - Paramedical Services)

SOC 825 (Protective Supervision 24-Hours-A-Day Coverage Plan)

PUB 13 (Your Rights Under California Welfare Programs)

Please deliver these files electronically in their native PDF format. Per Gov. Code § 7922.530(a), I look forward to your statutory determination within 10 calendar days.

Responsive documents that are not exempt from disclosure and are responsive to your request have been made available to you via the CDSS Request Portal. You can access such via the link(s) above this message (if provided), and/or by logging into the portal and navigating to "My Request Center" and selecting the reference number associated with this request.

Translated forms are available for download on the "Translated Forms and Publications" page on the CDSS website at the link below:

<https://www.cdss.ca.gov/inforesources/translated-forms-and-publications>

If you have any questions, you may message us via a direct reply to this email or access this request via the Portal and create a new message.

Sincerely,

Public Records Act Unit
Department of Social Services

On 7/5/2026 4:40:35 PM, CDSS wrote:



July 05, 2026

Sent Via Email To: [REDACTED]

Nicolas Hernandez

[REDACTED]

[REDACTED] CA 9 [REDACTED]

RE: Confirmation of Request Being Received

California Public Records Act (PRA) Request received on July 05, 2026

Reference # R013006-070526

Dear Nicolas Hernandez,

This is to confirm the California Department of Social Services (CDSS) is in receipt of your request. CDSS will process your request in accordance with the California Government Code. Your request has been received by the CDSS as of July 05, 2026, and given the reference number R013006-070526 for tracking purposes.

Records Requested:

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.) and the Dymally-Alatorre Bilingual Services Act (Gov. Code § 7290 et seq.), I hereby request digital copies of all public records consisting of the official, fillable PDF variants translated into all 17 non-English and non-Spanish state threshold languages (Arabic, Armenian, Cambodian, Chinese, Farsi, Hindi, Hmong, Japanese, Korean, Laotian, Mien, Punjabi, Russian, Tagalog, Thai, Ukrainian, and Vietnamese) for the following specific CDSS forms:

EBT 2216 (Electronic Benefit Transfer Documents)

SOC 321 (Request for Order and Consent - Paramedical Services)

SOC 825 (Protective Supervision 24-Hours-A-Day Coverage Plan)

PUB 13 (Your Rights Under California Welfare Programs)

Please deliver these files electronically in their native PDF format. Per Gov. Code § 7922.530(a), I look forward to your statutory determination within 10 calendar days.

Your request will be forwarded to the relevant CDSS division(s) to locate the information you seek and to determine the volume and any costs associated with satisfying your request. You will be contacted about the availability and/or provided with copies of the records in question. Please be aware that the Public Records Act does not require the Department to create new information, to do legal research, or to answer questions other than providing records already held and/or maintained by CDSS.

You can follow the status of your request(s) by logging into the https://cdss.govqa.us/WEBAPP/_rs/RequestEdit.aspx?rid=40681

On 7/5/2026 4:40:30 PM, Nicolas Hernandez wrote:

Request Created on Public Portal